

25NWLC15321 25NWLC15321

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-08-18

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Case Number: 25NWLC15321 Hearing Date: August 18, 2026 Dept: Y

25NWLC15321: CITIBANK, N.A. vs NEREIDA DELACRUZ

Tentative Ruling:

The Court has read and considered the moving papers filed by Defendant Nereida Delacruz ("Defendant"), including her supporting declaration. No opposition was filed by Plaintiff Citibank, N.A. ("Plaintiff"). The Court takes judicial notice of the Complaint filed on March 26, 2025 and the attached Cardmember Agreement. Defendant also submitted the Cardmember Agreement with her moving papers.

Code of Civil Procedure section 1281.2 provides that a court shall order arbitration if it determines that an agreement to arbitrate exists and that a party to the agreement refuses to arbitrate. Once arbitration is compelled, the court must stay the action pending the outcome of the arbitration pursuant to Code of Civil Procedure section 1281.4.

The Court notes that Defendant has elected to resolve Plaintiff's claims by binding arbitration and has made this request to Plaintiff by filing this motion pursuant to the terms of the Cardmember Agreement. Defendant has also advised that she submitted this matter to arbitration with American Arbitration Association (AAA) on July 21, 2026.

Pursuant to Code of Civil Procedure sections 1281.2 and 1281.4, Defendant's Motion to Compel Arbitration is GRANTED. The proceedings are stayed pending arbitration with AAA.

The Court advances and vacates the current trial date of August 19, 2026. The Court sets a Status Conference re Status of Arbitration on March 3, 2027 at 8:30 a.m. in Department Y.

Plaintiff to give notice.